CITY OF OPA-LOCKA

"The Great City"

Clerk's Action Summary Minutes
Regular Commission Meeting
April 8, 2009
7:00 p.m.
City Commission Chambers
777 Sharazad Boulevard
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Joseph L. Kelley called the meeting to order at 7:03 p.m. on Wednesday, April 8, 2009 in the City Commission Chambers, 777 Sharazad Boulevard, Opa-locka, Florida 33054.

2. ROLL CALL:

The following members of the City Commission were present: Commissioner Timothy Holmes, Vice Mayor Myra L. Taylor, Commissioner Dorothy Johnson and Mayor Joseph L. Kelley. Also in attendance were: Interim City Manager Bryan K. Finnie, City Attorney Burnadette Norris-Weeks and City Clerk Deborah S. Irby. Commissioner Rose Tydus arrived at 7:05 p.m.

3. INVOCATION:

The Invocation was delivered by Vice Mayor Myra L. Taylor.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. APPROVAL OF AGENDA:

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to approve the agenda and consent agenda.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes

Vice Mayor Taylor	Yes
Mayor Kelley	Yes

7. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

Commendations were presented by Commissioner Timothy Holmes to the following employees for their dedicated service and commitment to the city: Gerald Lee, Gordy Lee, Lavelle Jenrette, Nelson Rodriguez, Bernardo Larralde, Shawn Williams, Starex Smith, Joanna Flores, Diane Darden, Sha'mecca Lawson, Faye Douglas and Christine Gordon.

Commissioner Holmes further presented Derick Jones with a Certificate of Appreciation for assisting in identifying hazardous situations in the community.

Mayor Joseph L. Kelley along with the City Commission presented the South Florida Water Management District with a proclamation for Water Conservation Month (April 2009).

8. APPROVAL OF MINUTES:

Regular Commission Meeting – March 25, 2009

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to approve the minutes of the Regular Commission Meeting of March 25, 2009.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

9. DISTRICT ONE - COUNTY COMMISSIONER REPORT:

Mark Brown, Assistant to Commissioner Barbara Jordan, District 1 County Commissioner came forward and briefly updated the Commission on the Beautification and Rehabilitation Program (statistic information on this project provided to the City Clerk for distribution to the Commission). He further asked for approval to have the two project managers make a presentation at the April 22, 2009 regular commission meeting to showcase the before and after photos.

Additionally, Mr. Brown discussed the Relay for Life event on the following Friday and the Summer Youth Program sponsored by Commissioner Barbara Jordan.

Mayor Kelley expressed his opposition regarding Miami-Dade County's proposed 5% stimulus fee which would greatly affect small cities like Opa-locka and requested that Mr. Brown communicate this information to Commissioner Jordan.

Commissioner Johnson requested that Mr. Brown express to Commissioner Jordan the city's gratitude for the recent Jazz in the Gardens Festival.

Vice Mayor Taylor asked for further information on Commissioner Jordan's Summer Youth Program.

Mayor Kelley directed the City Clerk to include on the next agenda a presentation relating to the update on the two components of the Housing Program.

Battalion Chief Danny Cardeso of Miami-Dade Fire Rescue came forward to address any concerns/questions with regards to Miami-Dade Fire Rescue.

10. PUBLIC PRESENTATION:

1. Alvin Burke
re: welfare of the city

Alvin Burke of 540 Sharar Avenue, Opa-locka, Florida, appeared before the City Commission and expressed his concerns relating to consent agenda resolution no. 1 for Creative Choice Homes for a Senior Citizens development on Alexandria Drive and a recently hired employee in the Human Resources Department who started with a salary higher than that of a police officer in the city. He suggested that the city make the Opa-locka Police Department's salary comparable to other cities the same size. Secondly, he spoke on the resolution to pay an outside attorney when the city has a City Attorney with a salary of $200,000.00. He asked about the services rendered by the outside attorney and whether anybody had reviewed the number of cases going out to private attorneys?

He further stated that the employees who have been with the city for many years are being treated unfairly while the city continues to hire individuals with high salaries.

Since the citizens don't have the supporting documentation in the agenda packet, Commissioner Johnson suggested that the information is made available to the citizens. As it relates to Greenspoon Marder, her understanding was that it was not an outsourced case but a matter regarding an employee suing the city.

Attorney Weeks advised that the resolution deals with payment for several cases in litigation which she previously discussed with the Commission. The only remaining case that the firm is handling is a case dealing with the Flea Market.

For future meetings, Commissioner Johnson requested that the City Clerk make available to the citizens all supporting documentation for agenda items. Another good point Mr. Burke brought up which she received inquiries from citizens, was relating to the hiring

process which personally, according to the city's charter, the Commission should not be in the day to day operations of whose hired and the salary range. She requested that the City Manager allow the Human Resources Director to come forward. She asked, is there a process and scale of hiring practices, posting of jobs, salary range and notification to individuals who are not selected.

Mrs. Boyd replied, yes.

Commissioner Johnson expressed her concerns relating to the hiring process; the city must make sure the citizens are aware.

10a. CITIZENS' FORUM:

1. Ferdonia Williams of Bunche Park, Florida came forward and expressed her frustration regarding a matter that occurred resulting in the arrest of several of her family members in December 2008.

Mayor Kelley asked, were Opa-locka Police Officers involved in the arrest?

Mrs. Williams said that it was federal officers and the incident took place in Bunche Park.

Because the incident occurred in Bunche Park and not in the City of Opa-locka, Mayor Kelley informed Mrs. Williams that the city would assist her in getting in contact with the correct agency.

2. Ruby McKinnon of 1240 Sharazad Boulevard, Opa-locka, Florida, came forward and spoke on the same matter as Mrs. Williams and asked for assistance because her son remains in jail and is being treated unfairly.

Mayor Kelley directed Mrs. McKinnon to speak to Mark Brown, Assistant to District 1 County Commissioner, for assistance in trying to get this issue resolved.

3. Jones Turner of 13926 NW 22nd Place, Opa-locka, Florida, appeared before the City Commission and thanked Vice Mayor Taylor for repairing the sidewalk in front of his home; however, his neighbors would like to see their sidewalks repaired as well. He suggested putting a program in place to repair the sidewalks and possibly hiring young individuals from the community to do the work. He reported an incident in which a lady was jogging and fell as a result of the cracked sidewalk.

Mayor Kelley assumed that the city had started repairing sidewalks in one area since there is supposed to be a program in place to address this issue.

Manager Finnie indicated that inventory on the sidewalks had begun and he is addressing priority issues in terms of hazards.

Mayor Kelley informed the City Manager that according to Mr. Turner, these cracked sidewalks pose a hazard.

Commissioner Johnson stated that the sidewalks in certain areas throughout the city are in poor condition.

Mayor Kelly informed Mr. Turner that the City Manager is well aware of the issue with the sidewalks and will continue to work on it. He stated to the City Manager that he didn't know how the inventory was being done in terms of priority because Mr. Turner is saying the other part of the sidewalk is still unsafe.

Manager Finnie said he would sit with Public Works and come up with a comprehensive plan for the entire city.

Mayor Kelley said he thought the City Manager was already working on a comprehensive plan for the entire city.

Manager Finnie stated that they are looking at infrastructure, roadway, and a number of things.

As a point of clarification, Mayor Kelley stated that as soon as a sidewalk is repaired then everyone else is going to want theirs repaired as well. Therefore, there must be a structure in place to start getting it done.

4. Former Commissioner Gail E. Miller of 14235 NW 22nd Place, Opa-locka, Florida, appeared before the City Commission to express her concerns relating to how applicants and employees are unfairly treated by the Human Resources Director. She spoke about the hiring process for the Urban Rangers, the new employee in the Human Resources Department and the new Code Enforcement Director. She asked about Tasha Barney who worked in Human Resources but is no longer in that department.

Furthermore, she suggested that the Commission do what's right because the way the economy is, the city should not be hiring at all.

5. Steven Barratt of 633 Sharar Avenue, Opa-locka, Florida, came forward and stated that at the Weed & Seed meeting it was announced that there are 4,000 jobs available for the youth; therefore, the city should work on getting some of those jobs for the youth in the community.

He continued by saying that a large percentage of residents in Opa-locka utilize satellite television and perhaps the city should work on getting franchise fees.

Additionally, he spoke in favor of the second reading ordinance dealing with restricting trucks from driving on certain streets throughout the city.

Mayor Kelley assumed that the City Manager had staff at the Weed & Seed meeting and that the information on the jobs is already posted on the city's cable channel OPA-TV and Website.

Manager Finnie clarified that the announcement was made at the Steering Committee by an individual who was speaking about the 4,000 jobs being managed through the county; therefore, it was just an informational announcement. He said he would attempt to access the information for dissemination to the community.

Whenever there's job opportunities, Mayor Kelley suggested that the information is made available to the citizens by posting it on the city's website and Opa-TV.

6. Ms. Mitchell of 14240 NW 22nd Avenue, Opa-locka, Florida, came forward and spoke on the hiring process in terms of the posting of jobs and citizens not getting a fair chance at employment. She suggested that the hiring process be looked into because it seems like a friends and family thing.

Commissioner Johnson expressed her frustration and discontentment as it relates to the complaints about the procedures and hiring process of the Human Resources Department.

7. Alvin Burke of 540 Sharar Avenue, Opa-locka, Florida, appeared before the City Commission and reiterated that there are a lot of good and loyal employees in the city. When the city was going through financial trouble, whatever the employees were asked to do, they did. The employees have stuck around through the hard and bad times. He said there was no way a person could come into the city and displace those employees who stuck it out when the going was rough; there's no way that an employee who's done an excellent job for many years all of a sudden can't do the job anymore and has to be moved. He said this was not fair and it shouldn't happen in Opa-locka.

Although the Commission doesn't get involved with the day to day operations of the city, Mr. Burke stated that the citizens elected the Commission as their leaders; not the City Manager nor the City Attorney. He further spoke on the salary for police officers and high property taxes.

8. Former Commissioner Gail E. Miller of 14235 NW 22nd Place, Opa-locka, Florida, appeared before the City Commission and asked, after learning about the city hiring a new grant writer, what happened to the previous grant writer?

Mayor Kelley stated that the previous grant writer is currently employed by the city although he is no longer in that department.

On Saturday, April 4, 2009 in Liberty City on NW 62nd Street and NW 8th Avenue, Commissioner Holmes said the City of Miami held its 8th Annual Candlelight Vigil in honor of Dr. Martin Luther King, Jr.

Mayor Kelley made reference to page 11 of the Regular Commission Meeting Minutes of March 25, 2009 where he made it very clear about the Personnel Board Meeting Minutes relating to hiring within the city, particularly city residents. Also, at that meeting he mentioned complaints from residents not being hired and the city hiring outside individuals; positions being filled reference qualifying and hoped the process being used is fair. He even questioned the City Manager about preferential points for being a city resident and it was said at that meeting that preference points were given to city residents and 100% of the people hired for the particular position were residents of the city. He then asked for the process used to hire in any city position and giving preferential points or some discretion. At the meeting, he directed the City Manager to look into the hiring process because although the city wants to hire the best, he was concerned at that time after receiving complaints about the hiring process and giving city residents full consideration. As a part of that whole discussion reflected in the minutes, he said the city must do a better job in the day to day items.

He continued by saying that citizens have come to express their frustration and concerns about the process and yes the City Manager runs day to day but the Commission runs the City Manager. At the last meeting, he asked that the City Manager make sure the hiring process used is stern, fair, and most importantly when at all possible that city residents be given an opportunity. The City Manager runs the day to day operations, but these things that are occurring fall under the City Manager's jurisdiction and it ultimately stops with him.

He further stated that he is concerned about making sure the Commission doesn't overstep the boundary of the City Manager's right to run day to day; however, he is not happy with the performance of the City Manager and many of these issues that happen day to day. Whenever there's an opportunity to make sure the ship runs smoothly then the City Manager must do that. He also expressed his concerns relating to seeing outside people coming into the city that are being hired and former employees getting paid while another employee is hired to fill that same position. He said Opa-locka is not a city that has dollars to be paying exuberant salaries. The City Manager brought in people to run certain departments which is his prerogative to do, but he is concerned about what he sees as spending dollars the city doesn't have to be spending and to put people in positions that there's no funding for. He asked for information on grants and he received a partial listing and then a percentage breakdown because what he requested was not provided. There are items he brought up at the last meeting that he has not received correspondence reference to his request. He expressed his disappointment and said stated that it is up to the City Manager to make sure he doesn't forget day to day. Although he is aware that the city is working on getting money from Tallahassee, the Federal Government, and stimulus dollars, that doesn't mean anything if the City Manager doesn't take care of the people here in the city and the day to day things that need to be done.

Of concern to Commissioner Tydus were the allegations made by Ms. Mitchell involving her husband and if those allegations are true then it is unacceptable. Realizing that the administration didn't have an opportunity to respond, she asked that the Commission be provided with a report on that specific incident.

11. ACTION ITEMS (items from consent agenda pull list):

12. NEW ITEMS:

13. PLANNING & ZONING:

A. HEARINGS:

B. APPEALS:

14. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA APPROVING THE DUAL DESIGNATION OF NW 141ST STREET FROM NW 23RD AVENUE TO NW 26TH AVENUE AS "MOTHER E. JEAN PRUETT STREET"; PROVIDING FOR REPEAL OF ALL ORDINANCES IN CONFLICT; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by M.T.*

The above ordinance was read by title by Attorney Weeks.

It was moved by Vice Mayor Taylor, seconded by Commissioner Johnson to pass the above ordinance on first reading.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

2. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA APPROVING THE DUAL DESIGNATION OF WILMINGTON STREET FROM NW 18TH AVENUE TO NW 22ND AVENUE AS "JOHNNIE MAE GREENE STREET"; PROVIDING FOR REPEAL OF ALL ORDINANCES IN CONFLICT; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by D.J.*

The above ordinance was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above ordinance on first reading.

There being no discussion, the motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

Vice Mayor Taylor commended Commissioner Johnson for sponsoring the ordinance for the dual designation of Wilmington Street to "Johnnie Mae Greene Street".

B. SECOND READING/PUBLIC HEARING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA; AMENDING CHAPTER 20 OF THE OPA-LOCKA CODE OF ORDINANCES ENTITLED "TRAILERS" BY CREATING SECTION 20.8 ENTITLED "TRUCK ROUTES ESTABLISHED" AND ESTABLISHING REGULATIONS FOR ROAD USAGE BY COMMERCIAL VEHICLES WITHIN THE CITY OF OPA-LOCKA; PROVIDING FOR APPLICABILITY AND DEFINITIONS; PROVIDING FOR EXCEPTIONS; PROVIDING FOR ESTABLISHMENT OF TRUCK ROUTES; PROVIDING FOR PENALTIES; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE (first reading held on March 25, 2009). *Sponsored by C.M.*

Mayor Kelley opened the floor for a public hearing.

Steven Barrett of 633 Sharar Avenue, Opa-locka, Florida came forward and asked that the Commission pass the above ordinance.

Mr. Turner of 13926 NW 22nd Place, Opa-locka, Florida, appeared before the City Commission and encouraged them to adopt the ordinance.

There being no further persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to adopt the above ordinance.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Holmes	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes

Mayor Kelley Yes

C. RESOLUTION(S):

15. ADMINISTRATION:

CONSENT AGENDA:

1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, DECLARING THE CITY'S INTENT TO DEED CERTAIN VACANT CITY-OWNED PROPERTY IDENTIFIED BY FOLIO NO. 08-2128-007-0270 TO CREATIVE CHOICE HOMES XXXVIII, LTD FOR A PROPOSED SENIOR HOUSING DEVELOPMENT PURSUANT TO CERTAIN CITY CONDITIONS AND RESTRICTIONS. *Sponsored by C.M.*

2. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, RECOGNIZING MAY 7, 2009 AS NATIONAL DAY OF PRAYER WITHIN THE CITY OF OPA-LOCKA. *Sponsored by R.T.*

3. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA AUTHORIZING THE PURCHASE OF TABLES, CHAIRS AND CARTS FOR USE IN THE CITY COMMISSION MEETING SPACE LOCATED ON THE 2ND FLOOR OF TOWN CENTER ONE, IN THE AMOUNT OF TEN THOUSAND SIX HUNDRED FORTY-FOUR DOLLARS ($10,644.00), PAYABLE FROM ACCOUNT NO. 19-519642. *Sponsored by C.M.*

4. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO FILE A FY 2009 URBAN & COMMUNITY FORESTRY GRANT APPLICATION WITH THE FLORIDA DEPARTMENT OF AGRICULTURE AND CONSUMER SERVICES, DIVISION OF FORESTRY, IN THE AMOUNT OF TEN THOUSAND DOLLARS ($10,000.00) FOR PURCHASE OF A WATER TRUCK AS PART OF "PROJECT CLEANER AND GREENER". *Sponsored by C.M.*

5. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ACCEPTING THE PROPOSAL FROM MCCADVANTAGE, MUNICIPAL CODE CORPORATION, IN RESPONSE TO RFP NO. 09-0320 FOR PROCESSING OF UTILITY BILLS; FURTHER AUTHORIZING THE CITY MANAGER TO ENTER INTO AND EXECUTE AN AGREEMENT WITH MCCADVANTAGE, MUNICIPAL CODE CORPORATION, FOR THE PROVISION OF UTILITY BILL PROCESSING SERVICES IN A CONTRACT FORM ACCEPTABLE TO THE CITY ATTORNEY, PAYABLE FROM ACCOUNT NO. 17-513340. *Sponsored by C.M.*

6. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA ACCEPTING THE PROPOSAL FROM EMERGENCY COMMUNICATIONS NETWORK, INC., AS A SOLE SOURCE SELECTION FOR

IMPLEMENTATION OF CODERED HIGH SPEED TELEPHONE NOTIFICATION SERVICES AT AN ANNUAL COST OF THIRTEEN THOUSAND TWO HUNDRED AND FIFTY DOLLARS ($13,250.00); FURTHER AUTHORIZING THE CITY MANAGER TO MAKE PAYMENT OF THIRTEEN THOUSAND TWO HUNDRED AND FIFTY DOLLARS ($13,250.00) TO EMERGENCY COMMUNICATIONS NETWORK, INC. FOR CODERED HIGH SPEED TELEPHONE NOTIFICATION SERVICES, PAYABLE FROM ACCOUNT NO. 19-519340. *Sponsored by C.M.*

7. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO MAKE PAYMENT TO GREENSPOON MARDER, P.A. FOR LEGAL SERVICES RENDERED TO THE CITY OF OPA-LOCKA IN THE AMOUNT OF SIXTEEN THOUSAND, TWO HUNDRED SEVEN DOLLARS AND FORTY-FIVE CENTS ($16,207.45), PAYABLE FROM ACCOUNT NO. 28-514390. *Sponsored by C.M.*

The above consent agenda resolutions were read by title by Attorney Weeks.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the consent agenda resolutions.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

A. CITY MANAGER'S REPORT:

Over the last five months, Manager Finnie reported that he'd focused on restructuring the departments of the city to meet the goals and objectives of the strategic plan. Over the next few months, his focus would be on working with the police department to begin the process of accreditation; taking a gook look at the Parks & Recreation Department to maximize the use of those facilities and programs. In addition to the Weed & Seed program which hopefully the city will find out during the summer.

He continued by saying that he would take a look at the Human Resource process and will seek to document and report how the city does what it does. He said he would recommend changes as necessary in those areas where there are inconsistencies.

He further provided an overview of the tabbed items in the booklet provided to all members of the Commission. They were presented as follows:

Tab 1 provided written response/results, prepared by the City Manager and other department heads, to many of the concerns expressed during the March 25, 2009 regular commission meeting as listed in the Action List.

Tab 2 provided information regarding hours of operation for bars and distribution of alcoholic beverages.

Tab 3 provided a list of developable city owned property and pictures of several locations.

Tab 4 Listing of Boards and Committees provided by the Office of the City Clerk.

Tab 5 Detailed report listing the city's proposed grant applications.

Tab 6 Police Department Report detaining robberies, burglaries, vehicle thefts and other crimes for March 21-27, 2009.

Tab 7 News articles for the Westside Gazette Broward publication.

Tab 8 Invitation for Ribbon Cutting Ceremony scheduled for 04/30/2009 celebrating the City of Sweetwater Beautification Project completion.

Tab 9 Upcoming City Events 2009.

Tab 10 Newsletters – Opa-locka View – Volume 3, Issue 1; District One, Commissioner Barbara Jordan – Spring 2009.

Commissioner Johnson informed the City Manager of the need for blockers on NW 127th Street and NW 27th Avenue along the side of Porter's Locksmith because cars and trucks are driving on the sidewalk to make a right hand turn onto NW 27th Avenue. Additionally, the sidewalks in that area are cracked.

She requested a follow up to the complaint at the March 25, 2009 meeting relating to the police department which she'd hope would be available in the next package. She said she received two complaints of verbal abuse from the police officers and this must be addressed.

In working on being a "Go Green" city, she requested that the "U.S. Tree City" signs are put up around the city. She said several trees were cut down on the street behind New Fellowship Christian Church and on Opa-locka Boulevard. The city must come up with a plan to educated the residents because they don't know the importance of the trees and how it saves the environment.

She further stated that she observed "mattress for sale – brand new" signage along NW 27th Avenue and she noticed individuals picking up old mattresses that are put out for trash. She was told that there's a business in Opa-locka that takes the old mattresses, put

covers over them and sells them which is not decent. She asked, how does the city allow them to put their marketing out with handwritten signs and why isn't Code Enforcement addressing that issue?

Upon hearing a citizen's concern about Direct TV, Commissioner Johnson inquired about the franchise fees.

She continued by expressing her concerns relating to cell phone usage by city employees and the status of the external painting of businesses and maintenance of property because the ordinance was adopted over two years ago. With all these specialists and expertise being hired, the city must bring everything up to speed.

She further stated that there's a meeting scheduled on April 17, 2009 for the Welcome Kit. As it relates to Homeland Security, many of the employees are walking around with no badges on and with all the technology, the Commission also need badges. The City Clerk has mentioned about people just walking into her office.

With hurricane season beginning on June 1, 2009, Commissioner Johnson said she previously mentioned about the hurricane plan but she has yet to see any plan of preparation which should be available to the citizens as well as employees. She requested that the City Manager provide a Hurricane Preparedness Plan by the April 22, 2009 commission meeting.

Vice Mayor Taylor requested that the City Manager work on a strategic plan for lowering the property taxes and utility costs to the citizens. As it relates to foreclosure assistance, she asked, does the city have a general program?

Manager Finnie said that the city is supporting three initiatives; two have commenced and the third he is waiting to submit an application to Miami-Dade County for the resources. He stated that the most recent number of foreclosures in the city is 79.

Vice Mayor Taylor requested that the City Manager provide her with the list of foreclosures because she is particularly interested in assisting people save their homes.

She continued by expressing the importance of having security locks, cameras and/or mirrors in the City Clerk's Office because that office is wide opened and exposed to anyone. The City Clerk's Office is not secured especially for the person sitting at the receptionist desk.

Commissioner Johnson suggested that the Commission as a whole get a copy of the foreclosure list.

After meeting with the City Manager in January on a plan for foreclosures, Mayor Kelley said he requested then that the City Manager keep the Commission abreast of this issue. Since the foreclosure number has increased, he said he would hope that the City Manager is going to present to the Commission something more comprehensive. Secondly, he had

asked the City Manager to have staff coordinate with the Beacon Council for a Small Business Assistance Workshop particularly as it relates to helping businesses access funding; but he hasn't heard anything from anybody.

Manager Finnie apologized to the mayor and stated that the workshop is scheduled for April 27, 2009. Staff has been on the telephone with the Beacon Council trying to find out the best time and they believe it would be best to have the workshop in the afternoon. Also, he is in the process of contacting Miami-Dade Chamber as well as small businesses in the industrial parks throughout the city.

With regards to the request for an updated list of grants, Mayor Kelley voiced his concern about the city's ability to meet some of the timelines based on the information he received as of that day. Also, the original list was a lot larger than what he received, but there was no explanation as to why that listing was decreased and he would like to know what happened as it relates to the other grants. Within some of the grants, he noticed there are a couple of grants the city intends to partner and he is not sure why the city would partner instead of trying to get all of those dollars, but again it's not attached to the correspondence so he wouldn't know. The city must take advantage of every grant opportunity; therefore, he would like to receive an explanation as to why the listing was decreased.

He continued by expressing his frustration with the fact that Miami-Dade Aviation was not on the agenda although the City Manager had several representatives at a meeting a few weeks ago who should have followed through. He said he wanted the presentation to occur prior to the subcommittee meeting which is schedule for Tuesday, April 14, 2009. He requested that the City Manager find out what happened and provide him with a report by Friday, April 10, 2009.

He further stated that he noticed the activities for the Parks & Recreation Department; however, he didn't see enough of Baseball since it is Baseball season. After attending the meeting held the other day, he is still concerned that the city is not well rounded enough in terms of programs & activities. However, since the City Manager is working on this issue he'll wait on a report.

B. ACCOUNTS PAYABLE:

16. OFFICIAL BOARD REPORTS:

17. CITY ATTORNEY'S REPORT:

18. CITY CLERK'S REPORT:

Clerk Irby read into the record a letter sent from the Office of the Governor in response to the adoption of the resolution urging the Florida Legislature to pass legislation curtailing the abuse of prescription drugs in the State of Florida.

As it relates to the Passport initiative, she said she completed the paperwork for the city to be a Passport facility and she would keep the Commission informed.

Further, she had a successful meeting with the representatives from the U.S. Census Bureau and requested a headquarters in the city, monies for advertisements and that they hire city residents.

Commissioner Johnson directed the City Clerk to send a "Thank You" letter to Mrs. Tang of the U.S. Census Bureau.

She directed the City Attorney to do some discovery on Mayor Manny Diaz's Ban on Assault Weapons and bring back legislation.

Mayor Kelley informed Commissioner Johnson that Opa-locka was one of the first cities to pass a resolution on the Ban on Assault Weapons; however, there's another component.

Commissioner Johnson directed the City Attorney to go back to Mayor Kelley's previous resolution and amend it to include that additional component.

Vice Mayor Taylor asked about the training and jobs available from the U.S. Census Bureau.

Commissioner Tydus briefly discussed Mr. Burke's reference to several agenda items which he didn't have the backup information. As a result of the information not being available to him or other citizens more than none they usually do not approach the Commission with accurate allegations or information. She requested that the City Clerk make available an agenda packet either at the reception area in the Clerk's Office or the reception area near the elevator because it's public information.

Clerk Flores informed Commissioner Tydus that an additional agenda packet is always made and placed in the reception area in the Office of the City Clerk for anyone to view.

After hearing the concerns about security in the City Clerk's Office, Manager Finnie suggested that the agenda packet be placed in a location in the hall way.

Both Commissioner Tydus and Commissioner Johnson recommended having the agenda packet placed in the hallway near the elevator.

Commissioner Johnson asked, what happened to the discussion about having the agenda electronically?

Clerk Irby said she is looking into an automated agenda which would be better for the public to access.

19. MAYOR/COMMISSION REPORT:

Vice Mayor Taylor announced that the Miami-Dade NAACP is conducting a month long recruiting and membership drive in the month of May, focusing on Miami Gardens and the City of Opa-locka. She encouraged the city officials, businesses and citizens to join the NAACP which is one of the oldest civil rights organizations. She informed the City Attorney that she would provide the information for a resolution to support the drive. Secondly, she announced that May 17 – 23, 2009 is National Public Works Week and she is sponsoring activities for Public Works (information to be provided at a later time).

She further extended an invitation to the Easter Egg Hunt on Saturday, April 11, 2009 at Ingram Park.

Commissioner Holmes stated that all employees who work for the "great" City of Opa-locka do an excellent job and the few who he presented commendations go above and beyond the call of duty to get things done for the citizens of our community. He commended the Opa-locka Police Department for doing an excellent job in public safety. The city must work on the police department to give them the resources necessary so that they may improve the protection of the community. He thanked the City Manager for having the police officer on Jann Avenue with the radar gun addressing the speeding.

He continued by thanking Derick Jones for bringing to the city's attention the hazardous situation which prevented someone from getting hurt.

Commissioner Tydus reported that she attended the following events: landscaping project at Burlington Canal with the Crime Prevention Program, the green house tour, North Broward Luncheon, Parks & Recreation Sports Awards Banquet Recognition, the Child Abuse Awareness Program recognizing the month of April as Child Abuse Awareness Month and the Charter Review Board Meeting. As a result of her attending the Charter Review Board Meeting last week, the Charter Review Board set a public hearing regarding a particular issue on the agenda and she wasn't sure whether that was within the code to do so; therefore, she submitted a written request to the City Attorney to provide a legal opinion based on the code of ordinances. She requested that the City Attorney provide the entire Commission with a copy of her legal opinion.

Commissioner Johnson reported that she is working with the University of Miami for a mobile vehicle for school aged children to receive immunizations at no cost and Miami-Dade College to bring a nutritional class on Fridays at no cost to the city which would be a joint effort with the Opa-Steppers. She provided the City Clerk with a flyer for Habitat for Humanity for those interested in purchasing a home at an affordable amount.

She continued by saying she was appointed as a volunteer judge for Miami-Dade County. Additionally, she is working with a company named Business Link which is a part of Florida Atlantic University to make sure businesses have a resource for strategic planning, marketing and financial management.

After receiving several telephone calls from seniors inquiring about computer classes, she is working on that and will forward the information to the City Manager. She mentioned that the luncheon with Legal Aid for the seniors is on May 14, 2009 and she wants it publicized in advance and not at the last minute.

Manager Finnie stated that the organization referred to him is having the luncheon for specific individuals and he will follow up with Commissioner Johnson on this matter.

Commissioner Johnson expressed her gratitude for everyone who showed their concern during her time of bereavement.

Mayor Kelley reported that he is continuously working on bringing workshops for small businesses. He thanked those who participate in the monthly prayers throughout the city the first Wednesday of every month.

20. OFFICIAL BOARD APPOINTMENTS:
There were none.

21. ADJOURNMENT:

There being no further business to come before the City Commission, it was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to adjourn the meeting at 9:10 p.m.

ATTEST:

MAYOR

CITY CLERK